

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 24, 2019

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Kris Jones, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Luna moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on June 10, 2019. Motion (per Consent Agenda) carried.

Mr. Roybal moved to approve payment of vouchers as presented, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 3rd READING – Defining the terms and conditions of employment for non-uniformed employees of the City of Cheyenne for fiscal year 2019-2020. Reporting for Finance Committee, Mr. White moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body. (#4275)

ORDINANCE – 3rd READING – Defining the terms and conditions of employment for sworn officers of the Police Department for fiscal year 2019-2020. Mr. White moved to approve on third and final reading, seconded by Mr. Luna. Mr. Roybal moved to amend by increasing the number of sworn officers from 111 to 112, seconded by Mr. Luna. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#4276)

ORDINANCE – 3rd READING – Amending various sections of Chapter 5.12, Alcoholic Liquor and Malt Beverages, of Title 5, Business Licenses and Regulations, of the Code of the City of Cheyenne, Wyoming. Mr. White moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body. (#4277)

ORDINANCE – 2nd READING – Pursuant to Sections 1.1.6 and 2.4.1 of the Cheyenne Unified Development Code (“UDC”), replacing UDC Section 5.8.1 in response to the rapidly changing technology and regulatory environment for wireless communication facilities, including

the deployment of new, smaller wireless communication facilities. Charles Bloom, Planning & Development Director, provided a staff report and advised staff supports approval of the ordinance which establishes standards and guidelines. Mr. Bloom explained the purpose is to allow for deployment small cell wireless communication facilities and advised in January 2019, a Federal Communications Commission (FCC) ruling was implemented that City's cannot prohibit the deployment of small cell wireless communication facilities. Mr. Bloom advised staff has worked with multiple providers to come to an agreement on the proposed ordinance, noting an item of concern is current restrictions on light poll height and indicated a proposed substitute will be forthcoming to address the issue. He further noted a request has been made for an exemption for microcell facilities located on existing wirelines and reviewed the required shock clock review period. Bob Duchon, River Oaks Communications, explained the proposed ordinance provides for best practices not only for Wyoming, but around the country as well. Mr. Duchon reported the FCC order implemented strict compliance relating to review periods and limits amount of revenue communities can receive for facilities placed within public rights-of-way. He provided information on a recent cost study which indicates the revenue is below actual costs for communities. Mr. Duchon advised the FCC order is currently in the United States Court of Appeals 9th Circuit. Erik Rasmussen, Charter Communications, advised there will be a few recommendations of change for the ordinance to come before the Public Services Committee on July 2, 2019. Reporting for Public Services Committee, Mr. Shanor moved to approve on second reading, seconded by Mr. Case. Motion carried. Voting "yes" – all members of the governing body.

ORDINANCE – 1st READING – Amending Section 2.04.160(D), Readings-Committee Reports-Amendments, of Chapter 2.04, Mayor and City Council, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. Case) Upon inquiry, Mr. Case, sponsor of the ordinance, explained the item involves City sponsorships and other special revenues, therefore is being referred to the Finance Committee.

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Christensen Park, situated in a portion of the SW¼ NE¼, Section 36, Township 14 North, Range 67 West of the Sixth Principal Meridian, Cheyenne, Laramie County, Wyoming (located at the southwest corner of Talbot Court and Cribbon Avenue) (Postponed from 06-24-19). Mr. Shanor moved to adopt, seconded by Mr. Case. Mr. Shanor moved to postpone to 07-08-19, seconded by Mr. Roybal. Motion to postpone carried. Voting "yes" – all members of the governing body.

[CA] RESOLUTION – Amending Resolution No. 5934 pertaining to adoption of a revised Cheyenne-Laramie County Board of Health Fee Schedule for inspection services, permit fees and other various services. Motion (per Consent Agenda) carried. (#5998)

[CA] RESOLUTION – Authorizing the submission of an application by the City of Cheyenne for federal funding through the Transportation Alternatives Program administered by the Wyoming Department of Transportation for the purpose of constructing a multi-use path for pedestrians and bicycles at Lions Park and Frontier Park – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Repealing Resolution No. 5835, as amended, and Resolution No. 5942, both pertaining to the expedient redevelopment of the building located at 1602 Capitol Avenue, commonly referred to as the Historic Hynds Building – referred to Finance Committee. (Sponsor – Mr. Case)

[CA] RESOLUTION – Naming the future Municipal Courthouse in honor of Judge Joseph M. Carey – referred to Public Services Committee. (Sponsors – Mr. Luna, Mr. White and Mr. Roybal)

Purchase and Sale Agreement between the City of Cheyenne and Moreland Properties, LLC, Englewood, CO, for the sale of undeveloped public property described as a portion, consisting of approximately 1.46 acres, of Lot 2, Block 1, Pat Griffin Park, containing 5.5 acres, more or less, City of Cheyenne, Laramie County, Wyoming, for the appraised value of \$111,000.00. Jeff Geyer, Laramie County Conservation District and representative for the Clear Creek Revival Project (CCR), voiced support of the agreement. Mr. White moved to approve, seconded by Mr. Laybourn. Dr. Rinne reported he attended the recent Wyoming Association of Municipalities (WAM) Summer Convention and learned many municipalities have completed some significant developments utilizing a revolving land fund. Dr. Rinne advised when those communities sold property they would place revenue from those purchase and sale agreements into a revolving land fund for future development opportunities. Mr. White moved to amend Section 2 by directing the revenue realized from the sale in the amount of \$111,000.00 be appropriated to the 6th Penny Greenway account, seconded by Mr. Cook. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. (#7015)

[CA] Telecommunications right of way license and use agreement between the City of Cheyenne and Zayo Group, LLC, Boulder, CO. Motion (per Consent Agenda) carried (revenue to City). (#7016)

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, and Johnson County, Johnson County Sheriff’s Office, Wyoming, for law enforcement extraterritorial assistance. Motion (per Consent Agenda) carried. (#7017)

[CA] Memorandum of Understanding between the City of Cheyenne, Cheyenne Police Department, and the City of Torrington, Torrington Police Department, for law enforcement extraterritorial assistance. Motion (per Consent Agenda) carried. (#7018)

[CA] Agreement between the City of Cheyenne and the Cheyenne Symphony Orchestra for the use of the Cheyenne Civic Center for the Youth Education Concerts (Economic Support funds). Motion (per Consent Agenda) carried (amount not to exceed \$6,500.00). (#7019)

[CA] Memorandum of Understanding between the City of Cheyenne, Transit Division, and Laramie County to provide public transportation services to Laramie County Community College

and for an area of Laramie County immediately adjacent to the City (Revenue to City) – referred to Finance Committee.

[CA] Office Rental Agreement between the City of Cheyenne and The Friends of the Botanic Gardens Foundation (Revenue to City) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Semple Brown Design, PC, Denver, CO, for the Civic Center Conceptual Design Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

Contract Modification #2 to Contract No. 6660 between the City of Cheyenne and WYCO Recycling LLC, Cheyenne, to change the business name (Postponed from 06-10-19). Vicki Nemecek, Public Works Director, advised the contractor has requested this item be withdrawn and requested allowing the item to die. Mr. White reported there was no recommendation on the item from Finance Committee. The item died due to the lack of a motion to approve.

[CA] Contract Modification #1 to Professional Services Agreement #6785 for the Christensen Railroad Overpass Corridor Project (Specific Purpose Sales Tax) (Postponed from 06-10-19). Motion (per Consent Agenda) carried (amount not to exceed \$710,983.20) (#6785)

[CA] Contract Modification #1 to Contract #6975 (Bid #S-11-19) between the City of Cheyenne and Simon Contractors, Cheyenne, for the Smalley Park Greenway Reconstruction project. (Greenway Maintenance funds). Motion (per Consent Agenda) carried. (#6975)

Consideration of Bid #S-17-19 for a contract between the City of Cheyenne, and Ameri-Tech HVAC Services, Cheyenne, for the HVAC and Mechanical Systems Maintenance Project (Civic Center, Fleet Maintenance, General Fund, Ice & Events, and Solid Waste funds). Upon inquiry, Vicki Nemecek, Public Works Director, reported two companies, Ameri-Tech HVAC Services and Long Technologies, attended the bid opening, however, only Ameri-Tech HVAC Services submitted a bid. Ms. Nemecek advised the proposed contract includes a decrease in cost and noted a two-year term is common for these types of contracts. Ms. Nemecek provided information relating to comments involving challenges in providing maintenance services due to the current condition of existing equipment and reported staff is looking into a potential Capital Equipment Program (CIP) for this type of service and maintenance. Comments and concerns were voiced relating to the low number of bidders relating to this particular service. Mr. White moved to approve in an amount not to exceed \$255,354.00, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. (#7020)

[CA] Consideration of Bid #E-28-19 for furnishing two (2) new 2019-2020 15 passenger vans for the City of Cheyenne, Recreation Division (Reserves carryover). Motion (per Consent Agenda) carried (accepted bid submitted by Bob Ruwart Motors, Wheatland, WY, in an amount not to exceed \$52,049.76).

[CA] Consideration of Bid #E-14-19 for furnishing one (1) new four-door Utility Police Interceptor (staff vehicle) for Cheyenne Fire & Rescue (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid submitted by Spradley Barr Motors, Cheyenne, WY, in an amount not to exceed \$44,584.00).

[CA] Consideration of Bid #E-33-19 for furnishing 95 gallon and 65 gallon automated refuse carts for the City of Cheyenne, Sanitation Division (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid submitted by Otto Environmental Systems, North America, Charlotte, NC, in an amount not to exceed \$145,106.00).

[CA] Consideration of Bid #E-34-19 for furnishing 1 ½ cubic yard capacity steel Sanitation refuse containers with covers for the City of Cheyenne, Sanitation Division (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid by Kois Bros Equipment Company, Commerce City, CO, in an amount not to exceed \$88,800.00).

[CA] Consideration of Bid #E-31-19 for furnishing two (2) new 2019-2020 Solid Waste transfer trailers, for the City of Cheyenne, Sanitation Division (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-32-19 for furnishing one (1) new 2019-2020 ½ ton, 4 door crew cab, full size pickup truck, 4x4, 6 ½ foot box, with Fleet work package, with plow, for the City of Cheyenne, Sanitation Division (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-29-19 for furnishing two (2) new cab & chassis with rear load sanitation refuse collection bodies, 25 cubic yard with tippers, for the City of Cheyenne, Sanitation Division (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-30-19 for furnishing three (3) new 2019-2020 twin-screw diesel powered cab & chassis, for the City of Cheyenne, Sanitation Division (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-36-19 for furnishing battery powered extrication spreaders, cutter, and rams, for the City of Cheyenne, Cheyenne Fire and Rescue Department (General Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-18-19 for a contract between the City of Cheyenne, and Simon Contractors, Cheyenne, WY, for the 2019-2020 Miscellaneous Street Repairs Project (2015-2018 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #S-19-19 for a contract between the City of Cheyenne, and Mechanical Systems, Inc., Cheyenne, WY, for the Southwest/Grandview Storm Sewer Improvements Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

Reappointments of Kimberley Withers to the Cheyenne/Laramie County Economic Development JPB; Gay Van Horn, Danny Glick, Rick Robinson, Elizabeth Lance and Kiersti

Willms to the Laramie County Community Juvenile Services JPB; Bruce Heimback to the Downtown Development Authority; and Scott Thomas to the Public Transit Advisory Board. Mr. Shanor moved to approve, seconded by Dr. Rinne. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Orr who did not vote (mayoral appointments).

Appointment of Craig Kerrigan to the Cheyenne Downtown Development Authority Board. Upon inquiry, Mayor Orr confirmed the proposed appointment is an “at-large” position. Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Orr who did not vote (mayoral appointment).

Announcement was made of a Public Hearing to be held July 8, 2019 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for a portion of Tract 119, all of Tract 120 and portions of Tracts 135 and 136, and adjacent vacated rights-of-way, Sunnyside Addition, Fourth Filing, Laramie County, Wyoming (located south of the intersection of Fillmore Avenue and Charles Street).

Announcement was made of a Public Hearing to be held July 8, 2019 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for the three hundred (300’) wide right-of-way of U.S. Highway No. 30, situated in a portion of Sections 26, 27, and 34, Township 14N, Range 66W of the 6th PM, Laramie County, Wyoming (located between Cleveland Avenue and Hayes Avenue).

Announcement was made that two Calcuttas, benefitting Cheyenne area charities, will be held as follows: Thursday, July 18, 2019 beginning at 7:00 p.m. at the Redwood Lounge, 2105 East Lincolnway, Cheyenne, Wyoming, in conjunction with the 2019 Cheyenne Frontier Days Wild Horse Races, and Saturday, July 27, 2019 beginning at 5:30 p.m. in the Cowboy Bistro located beside the Rodeo Committee Cabin, Frontier Park, Cheyenne, Wyoming (10% of proceeds to bona fide charities).

Under other business:

Jamie Davidson requested consideration on rehabilitation efforts within her neighborhood (Fremont and 11th Streets) due to drainage issues causing personal property damage and reported flooding at her residence. Ms. Davidson advised it is her understanding from contact with the City Engineer’s office, flooding remediation hasn’t occurred due to lack of funding. Anthony Gonzales, area resident, provided comments regarding on-going flooding and property damage concerns. Upon inquiry, Amy Allen, City Engineer, provided information relating to a recent visit to the area of concern, lack of available funding and efforts to minimize citywide drainage issues resulting from previous developments. Vicki Nemecek, Public Works Director, explained upon inquiry that drainage projects are eligible for 5th Penny funding, however, the amount that is allowed is usually used for grant funding matches. Ms. Allen explained current UDC and City Code requirements are being reviewed for potential amendments to address drainage issues and

support of enforcement. Discussion included citywide drainage complaints/issues, lack of available funding, current development standards, storm water drainage, and FEMA funding and drainage master plans.

Upon inquiry, Chief Brian Kozak, Police Department, provided information relating to recent crime data published relating to big box stores, specifically both local Walmart stores, noting shoplifting raises the City's overall crime theft rates.

Donn Edmunds requested restricting heavy truck traffic on Pershing Blvd. relating to the construction on the Christensen Road Overpass Project.

Kris Jones, City Clerk, requested, due to timeliness involving an application for a resort liquor license and per Mayor Orr's permission, the following item be announced: Announcement of a Public Hearing to be held on July 8, 2019 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for a resort liquor license application filed with the City Clerk's Office for Driftwood Special Servicing, LLC d/b/a Red Lion Hotel Cheyenne & Conference Center, 2014 Fox Farm Rd., Cheyenne, Wyoming.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:59 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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